

the complaint: paragraphs 13-25, 31-32, 49(c) and 60(a).

Dorese requests attorney fees for prevailing on this motion. Dorese may file a motion for fees. That motion should limit any request for fees to the issues upon which she prevailed. On a request for fees on a partially successful special motion to strike the court should consider the extent to which the “motion changed the nature and character of the lawsuit in a practical way.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 345 [discussing factors to consider when awarding fees on a partially successful special motion to strike].)

8. 9:00 AM CASE NUMBER: C24-03193
CASE NAME: MATTHEW BERNIER VS. JANEEN NEGHERBON
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: BERNIER, MATTHEW J.
TENTATIVE RULING:

Plaintiffs/cross-defendants Matthew J. Bernier and Patricia Mitchell Bernier as trustees of the Bernier Family Trust (“Plaintiffs”) own and reside on property located at 3237 Camino Diablo, Lafayette (the “Dominant Property”). Defendants/cross-complainants Janeen Negherbon and Ben Paramonte (“Defendants”), reside on property next to Plaintiffs, which is owned by Janeen Negherbon, and is located at 3235 Camino Diablo, Lafayette (the “Subservient Property”). This lawsuit relates to a dispute over an easement that involves the properties and is focused on the easement’s size, scope, and proper uses. Both parties assert claims for quiet title, trespass, private nuisance, declaratory relief, and injunctive relief against one another, and Defendants also assert a claim for negligence. Plaintiffs have filed a motion for leave to file a second amended complaint, which Defendants oppose.

For the reasons discussed below, the Court **GRANTS** Plaintiffs’ motion for leave to file a second amended complaint.

Background

Plaintiffs and Defendants are neighbors who are currently in a dispute relating to an easement that cuts through Defendants’ property in order to provide Plaintiffs with access to the nearest road. Plaintiffs purchased the Dominant Property around December 2014, and Defendant Janeen Negherbon bought the Subservient Property in February 2018. Plaintiffs allege that a gate and fence have been in place at the easement since 1981.

The parties appear to have lived in relative harmony as neighbors from 2018 until July of 2024, when Defendants started paying more attention to the easement, the land around it, and the property lines. Defendants take issue with the easement because the fence and gate interfere with their access to and also cover portions of the Subservient Property. Defendants assert that the easement is specifically for ingress, egress, and utilities, and not for parking, recreation and sports, loitering, gathering, or letting dogs run loose. Defendants placed a recycle bin on a property line of the easement in order to show where the Subservient Property began, and so to stop Plaintiffs’ guests from parking on the Subservient Property. Hostilities continued to increase, resulting in the instant litigation.

Plaintiffs filed a complaint on November 25, 2024, asserting the following claims against Defendants: (1) quiet title; (2) trespass; (3) private nuisance; (4) declaratory relief; and (5) injunctive relief. Plaintiffs filed a first amended complaint on January 13, 2025, which asserted the same five claims as the original complaint. On February 18, 2025, Defendants filed a cross-complaint asserting claims for: (1) quiet title; (2) trespass to land; (3) private nuisance; (4) negligence; (5) declaratory relief; and (6) injunctive relief.

On September 9, 2025, Plaintiffs filed a substitution of attorney form that substituted their prior attorney with their present one, Eric C. Schaffer, of Bowie & Schaffer. On October 30, 2025, at a trial setting conference, the trial was set for May 5, 2026.

Legal Standard for Motion for Leave to File an Amended Pleading

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, 212 Cal.App.4th at 1159 quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Discussion

Procedural Requirements

A motion to amend a pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings, and it must state: (1) what if any allegations are proposed to be deleted; (2) what if any allegations are proposed to be added; and (3) where, by page, paragraph, and line number the allegations to be added or deleted are located. (Cal. Rules of Court, Rule 3.1324(a).) A motion to amend a pleading must also have attached a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request to amend was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Here, Plaintiffs have complied with the procedural requirements because they have included a redlined copy of the proposed second amended complaint that shows what they propose adding and

deleting and where. (Eric C. Schaffer Declaration ISO Motion for Leave, ¶ 3, Exh. 2.) Plaintiffs also have included a declaration that specifies the effect of the amendment (*id.*, at ¶¶ 4-5), why the amendment is necessary and proper (*id.*, at ¶ 4), when the facts giving rise to the amended allegations were discovered (*id.*, at ¶¶ 4-5), and why the request was not made earlier (*id.*, at ¶¶ 5-7).

Substantive Analysis

Defendants oppose Plaintiffs' motion for leave to amend by arguing: (1) that Plaintiffs failed to exercise reasonable diligence and that their delay in filing the motion for leave was unreasonable; and (2) that the proposed amendment would prejudice Defendants. (Opposition, pp. 6-9.)

Diligence and Unreasonable Delay

Defendants argue that the Court should deny Plaintiffs' motion because the facts were available and reasonably knowable at the outset of the litigation and Plaintiffs failed to include the present allegations in either the original complaint or the amended complaint. (Opposition, pp. 6-7.)

Plaintiffs respond that the cases cited by Defendants are distinguishable in that *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, involved a request made after discovery had closed on the eve of trial and *Melican v. Regents of University of Cal.* (2007) 151 Cal.App.4th 168, involved a request to amend a complaint that was made orally at a hearing on a motion for summary judgment. Plaintiffs point out that this case was filed in November 2024 and has only been fully at issue since April 2025, and discovery has not yet closed. (Reply, p.4.)

The Court finds that Plaintiffs' delay in this case is not unreasonable. This case has been pending for less than one year and four months, and this matter is quite far from the 3-year discretionary dismissal and 5-year mandatory dismissal deadlines set by statute. (Code Civ. Proc., §§ 583.420, 583.310.) Further, new counsel stepped in for Plaintiffs on September 29, 2025, less than two months before the court set the May 2026 trial date, and Plaintiffs' new counsel sent a letter to counsel for Defendants asking to stipulate to the filing of a second amended complaint as soon as December 16, 2025, which was less than 3 months later. (Eric C. Schaffer Declaration ISO Reply, ¶ 9.)

Finally, even if there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Prejudice

Defendants argue that "[p]rejudice may be found where the amendment would: (1) require reopening discovery; (2) introduce new legal theories late in litigation; (3) necessitate additional depositions; (4) undermine litigation strategy already developed; or (5) deprive the opposing party of substantive defenses." (Opposition, p. 8:12-15, citing *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-488.) Defendants assert that Plaintiffs' proposed SAC would introduce various new legal theories and factual allegations very late in the litigation, which would result in new responsive pleadings, new written discovery, third party depositions, additional meet and confer efforts and motion practice, and the retaining of additional experts and/or revising of expert disclosures and reports. (Opposition, pp. 8:26-9:7.) Defendants argue that this would cause them to

incur significant additional costs. (*Id.*, at p. 9:7-8.)

Plaintiffs contest Defendants' portrayal and argue that Defendants "do not cite to any actual potential prejudice other than being subject to legally viable causes of action and having to incur the expense of preparing for trial." (Reply, p. 3:10-11.) Plaintiffs point out that this case has only been at issue for 10 months and that party depositions have not yet taken place, discovery remains open, and expert witnesses have not yet been disclosed. (*Id.* at 3:21-24.) The Court agrees with Plaintiffs.

The Court finds that although the initial trial date is approaching, this is not an instance of being "late" in the litigation as this case has only been pending since November 25, 2024. The Court finds that Defendants needing to file a new responsive pleading, conduct further discovery, and update expert opinions are not sufficient to overcome the policy favoring amendment. The *Magpali* case cited by Defendants is distinguishable because there the jury had been impaneled, "counsel, the parties, the trial court, and the witnesses ha[d] blocked the time," and the addition of the amended claim "would have necessitated, at the very least a continuance to allow [Defendant] to depose new witnesses." (*Magpali, supra*, 48 Cal.App.4th at 487-488.) In the instant case, no jury has been impaneled, and both sides are in a position to adjust to a new trial date should this amendment be permitted. "[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Sup. Ct.* (1989) 213 Cal. App. 3d 1045, 1047.) "The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare." (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) The Court finds that this is not one of those rare instances where denial of leave to amend is justified.

Continuation of Trial Date

Defendants ask the Court to continue the trial date and all associated deadlines 180-240 days if the Court grants the motion for leave to amend. (Opposition, pp. 9:24-10:9.) Plaintiffs assert that they would prefer to keep the current trial date but would agree to a continued trial date as a condition for the filing of the second amended complaint. (Reply, p. 5:10-14.) Plaintiffs ask that the continuance be limited. (*Ibid.*)

With trial scheduled for less than two months after hearing on this motion, the Court finds that Defendants would not have time to properly pursue discovery on the new allegations and theories without a continuance of the trial date. "[I]f an amendment is appropriate the trial Court should continue the trial if necessary, even if the matter is on fast track." (*Honig v. Financial Corp. of America* (1992) 6 Cal. App. 4th 960, 967.)

Ruling on the Motion for Leave to Amend

Plaintiffs' motion for leave to amend is **GRANTED**. The Court orders as follows:

- 1) The **May 5, 2026, trial date is vacated**.
- 2) Plaintiffs must file their proposed second amended complaint within 10 calendar days of notice of entry of this order.

- 3) Defendants' response thereto shall be filed per Code.
- 4) **The Parties are ORDERED to appear at a Case Management/Trial Setting Conference on Thursday, May 14, 2026, at 8:30 a.m., in Department 32**, to discuss the resetting of trial. Each party is ordered to file and serve an updated Case Management Conference Statement 15 days in advance of May 14, 2026.

9. 9:00 AM CASE NUMBER: C24-03360
CASE NAME: LISA LOPEZ VS. PETER DEMPSEY
HEARING ON DEMURRER TO: ANSWER
FILED BY: LOPEZ, LISA
TENTATIVE RULING:

Notice of Settlement of Entire Case filed. Hearing vacated.

10. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

Plaintiff and cross-defendant Darcell Kelly a.k.a. Darcell Purefoy ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Eddie Drummer ("Cross-Complainant").

Cross-Defendant argues that that Cross-Complainant has failed to plead sufficient facts to support any of their causes of action, that all the causes of action are time barred, and that the first cause of action for breach of contract is barred by the statute of frauds. (Demurrer, pp. 1-2.) Cross-Defendant asks the Court to sustain their demurrer in its entirety, without leave to amend. (Demurrer MPA, p. 9.)

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (Code Civ. Proc. (CCP), §472b; California Rules of Court (CRC), rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Christopher B. Lewis Decl. ISO Demurrer, ¶¶ 4-7; CCP, § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged."